OSPAR List of Chemicals for Priority Action

(OSPAR Agreement 2004-12)[1]

Background

1. In 2023, and as reported at the meeting of the Hazardous Substances and Eutrophication Committee (HASEC 2023), Stage 1 on the evaluation of the List of Chemicals for Priority Action (LCPA) and List of Substances of Possible Concern (LSPC) was finalised.

2. The Working Group on Monitoring and on Trends and Effects of Substances in the Marine Environment (MIME) (November 2023) and the Intersessional Correspondence Group on the LCPA and LSPC (ICG-List) (January 2024) started to implement Stage 2 of the proposed work and focused on the update needed to the LCPA first. The next steps will be to work on the LSPC and other related agreements. [2]

Agreement 2004-12 on OSPAR List of Chemicals for Priority Action

3. As agreed in 2023 PFAS was added to the LCPA as a group of per- and polyfluoroalkyl substances. Addditional minor editorial changes were made by removing the row with 'aromatic hydrocarbon' as there was no other information in the same row. Reference to the background document for PFAS was added. The current categories types A-C were left as they were. In addition, it was agreed in 2023 to include the OSPAR List of Substances of Possible Concern as an annex to the LCPA.

Agreement 2002-17 on OSPAR List of Substances of possible concern and related agreements

4. With respect to the LSPC (previously OSPAR Agreement 2002-17, and now included as Annex 1), no substances for selection or deselection have been proposed during the review of the LCPA, and the table of substances remains the same. It needs scrutiny as it contains links to several other Agreements. The review of the other Agreements is part of the Stage 2 work.

Selection of substances

5. The flowchart on the selection procedure for selecting and prioritising OSPAR substances of priority action and concern (LCPA and its annex LSPC) which describes the holistic approach for managing the lists was rearranged for better coherence (**Figure 1**). The category types A-C were removed from the scheme for readability.

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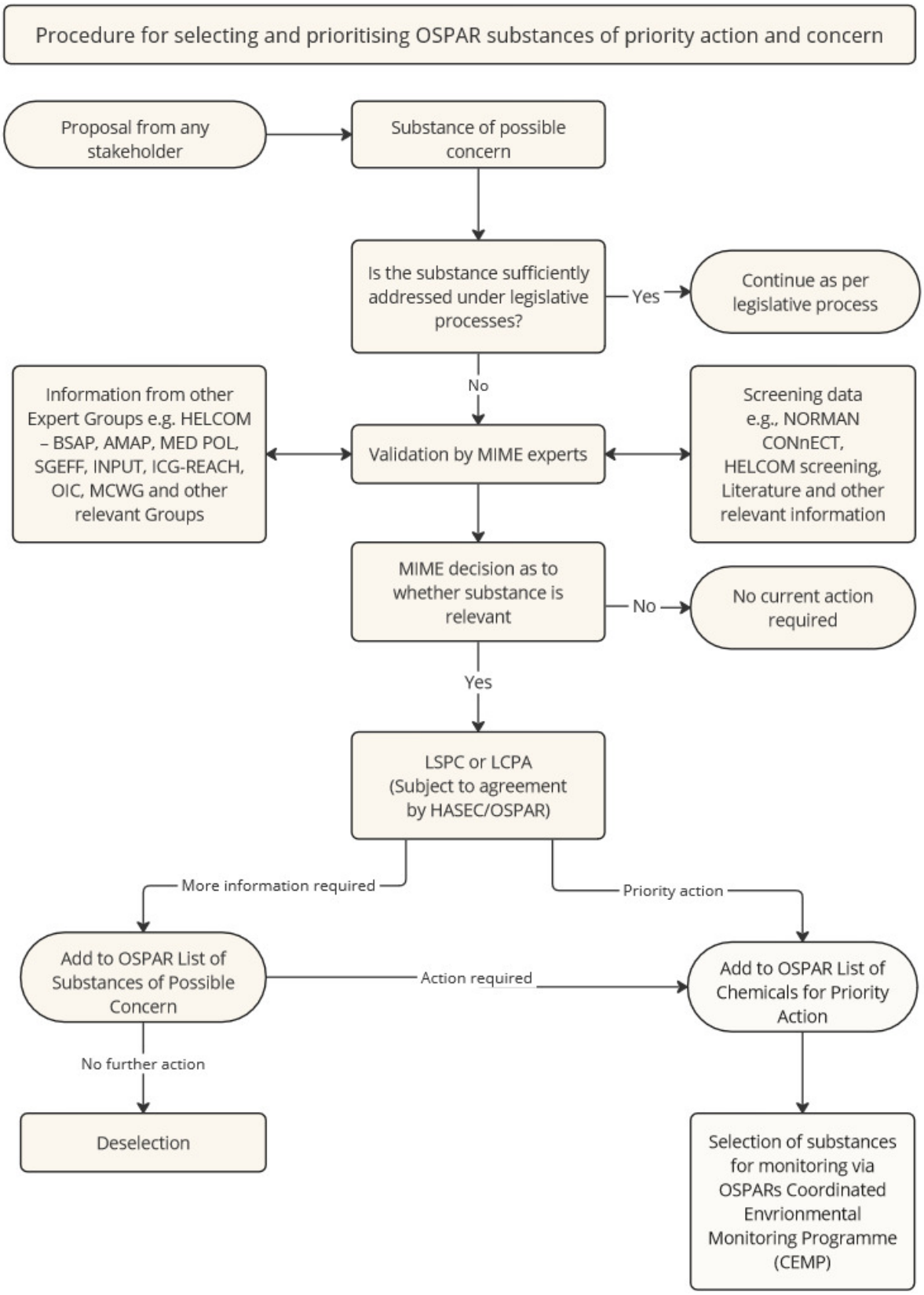
[1] Update 2023-2024

[2] Agreement 2002-10 on Guidance on How to Apply the Safety Net Procedure for the Inclusion of Substances in the OSPAR List of Substances of Possible Concern; Agreement 2004-13 on Deselection of substances from the OSPAR List of Substances of Possible Concern; Agreement 2006-9 on further work on substances of possible concern; Agreement 2003-26 on Procedure for the development, publication and review of OSPAR background documents on hazardous substances identified for priority action; Agreement 2003-12 on Guidance on a common framework for the establishment of the monitoring strategies for each of the substances (or groups of substances) on the OSPAR List of Chemicals for Priority Action, amongst others.

Figure 1


Procedure for selecting and prioritising OSPAR substances of priority action and concern
Proposal from any stakeholder
Substance of possible concern
Is the substance sufficiently addressed under legislative processes?
Yes
Continue as per legislative process
No
Information from other Expert Groups e.g. HELCOM – BSAP, AMAP, MED POL, SGEFF, INPUT, ICG-REACH, OIC, MCWG and other relevant Groups
Validation by MIME experts
Screening data e.g., NORMAN CONnECT, HELCOM screening, Literature and other relevant information
MIME decision as to whether substance is relevant
No
No current action required
Yes
LSPC or LCPA (Subject to agreement by HASEC/OSPAR)
More information required
Priority action
Add to OSPAR List of Substances of Possible Concern
Action required
Add to OSPAR List of Chemicals for Priority Action
No further action
Deselection
Selection of substances for monitoring via OSPARs Coordinated Envrionmental Monitoring Programme (CEMP)

List of Chemicals for Priority Action (LCPA) – OSPAR Agreement 2004-12. Update 2023-2024				
CAS No	**Group of substances / substances**	***Function***	**Last revision of Background document (Lead country)**	**Review statement on Background document**
A: CHEMICALS WHERE A BACKGROUND DOCUMENT HAS BEEN OR IS BEING PREPARED[3]				
	cadmium	*Metallic compound*	2004 (Spain)	2010
	lead and organic lead compounds	*Metal/organometallic compounds*	2009 (Norway)	
	mercury and organic mercury compounds		2004 (UK)	2009
	organic tin compounds (endnote 7)	*Organometallic compounds*	2011 (The Netherlands)	
51000-52-3	**neodecanoic acid, ethenyl ester**	*Organic ester*	2011 (UK)	
1763-23-1	**perfluorooctanyl sulphonic acid and its salts (PFOS)** (endnote 5)	*Organohalogens*	2006 (UK)	2011
	per-and polyfluoroalkyl substances (PFAS)		2024 (OSPAR)	
79-94-7	**tetrabromobisphenol A (TBBP-A)**		2011 (UK)	
87-61-6	**1,2,3-trichlorobenzene**		2005 (Belgium & Luxembourg)	2010
120-82-1	**1,2,4-trichlorobenzene**		2005 (Belgium & Luxembourg)	2010
108-70-3	**1,3,5-trichlorobenzene**		2005 (Belgium & Luxembourg)	2010
	brominated flame retardants		2009 (Sweden)	
	polychlorinated biphenyls (PCBs) (endnote 8)		2004 (Germany & Belgium)	2008

[3] OSPAR 2005 agreed to remove 4-*tert*-butyltoluene (CAS no 98-51-1), hexachlorocyclopentadiene (HCCP) (CAS No 77-47-4) and triphenylphosphine (CAS No 603-35-0) from the list since they are not PBT substances (see OSPAR 2005 Summary Record, OSPAR 05/21/1 paragraph 7.5).

OSPAR 2007 agreed to deselect hexamethyldisiloxane (HMDS) (CAS No 107-46-0) from the List of Chemicals for Priority action since it is not a PBT substance (see OSPAR 2007 Summary Record, OSPAR 07/24/1 paragraph 8.3).

The reasons for deselection are set out in the Agreement 2004-13 available on the OSPAR website.

OSPAR 2023 agreed to add Per-and polyfluorinated substances (PFAS) to the List of Chemicals for Priority Action and to move the List of Substances of Possible Concern (LSPC – Agreement 2002) to an Annex of the LCPA (OSPAR 23/17/01, §13.39).

	polychlorinated dibenzodioxins (PCDDs) **polychlorinated dibenzofurans (PCDFs)**		2007 (Denmark & Belgium)	
	short chained chlorinated paraffins (SCCP)		2009 (Sweden)	
793-24-8	**4-(dimethylbutylamino)diphenylamin (6PPD)**	*Organic nitrogen compound*	2006 (Germany)	
		Organophosphate		
115-32-2	**dicofol**	**Pesticides/Biocides/ Organohalogens**	2004 (Finland)	2008
115-29-7	**endosulfan**		2004 (Germany)	2008
	hexachlorocyclohexane isomers (HCH)		2004 (Germany)	2008
72-43-5	**methoxychlor**		2004 (Finland)	2008
	pentachlorophenol (PCP)		2004 (Finland)	
1582-09-8	**trifluralin**		2005 (Germany)	2012
23593-75-1	**clotrimazole**	*Pharmaceutical*	2013 (France)	
732-26-3	**2,4,6-tri-tert-butylphenol**	*Phenols*	2006 (UK)	2009
	nonylphenol/ethoxylates (NP/NPEs) and related substances		2009 (Sweden)	
140-66-9	**octylphenol**		2006 (UK)	2009
	certain phthalates: dibutylphthalate (DBP), diethylhexylphthalate (DEHP)(endnote 10)	*Phthalate esters*	2006 (Denmark & France)	
	polyaromatic hydrocarbons (PAHs) (endnote 6)	*Polycyclic aromatic compounds*	2009 (Norway)	
	musk xylene	*Synthetic musk*	2004 (Switzerland)	

CAS No	Group of substances / substances	*Function*	Identified at (endnote 1)
B:CHEMICALS WHERE NO BACKGROUND DOCUMENT IS BEING PREPARED BECAUSE THEY ARE INTERMEDIATES IN CLOSED SYSTEMS (endnote 2)			
4904-61-4	**1,5,9 cyclododecatriene**(endnote 2)	*Aliphatic hydrocarbons*	OSPAR 2002
294-62-2	**Cyclododecane**(endnote 2)		OSPAR 2002

CAS No	Group of substances / substances	*Function*	Identified at (endnote 1)
C: CHEMICALS WHERE NO BACKGROUND DOCUMENT IS BEING PREPARED BECAUSE THERE IS NO CURRENT PRODUCTION OR USE INTEREST (endnote 3)			
59447-55-1	**2-propenoic acid, (pentabromo)methyl ester**	*Organohalogens*	OSPAR 2003
36065-30-2	**2,4,6-bromophenyl 1-2(2,3-dibromo-2-methylpropyl)** (endnote 3)		OSPAR 2001
85-22-3	**pentabromoethylbenzene**(endnote 3)		OSPAR 2001

CAS No	Group of substances / substances	*Function*	Identified at (endnote 1)
28680-45-7 2440-02-0	**heptachloronorbornene**(endnote 3)		OSPAR 2001
1825-21 -4	**pentachloroanisole**(endnote 3)		OSPAR 2001

CAS No	Group of substances / substances	*Type*	Identified at (endnote 1)
	polychlorinated naphthalenes(endnote 3, endnote 4)	*Organohalogens (cont.)*	
1321-65-9	trichloronaphthalene(endnote 3)		OSPAR 2001
1335-88-2	tetrachloronaphthalene(endnote 3)		OSPAR 2001
1321-64-8	pentachloronaphthalene(endnote 3)		OSPAR 2002
1335-87-1	hexachloronaphthalene(endnote 3)		OSPAR 2001
32241-08-0	heptachloronaphthalene(endnote 3)		OSPAR 2001
2234-13-1	octachloronaphthalene(endnote 3)		OSPAR 2001
70776-03-3	naphthalene, chloro derivs. (endnote 3)		OSPAR 2002
55525-54-7	**3,3'-(ureylenedimethylene)bis(3,5,5-trimethylcyclohexyl) diisocyanate**(endnote 3)	*Organic nitrogen compound*	OSPAR 2001
2104-64-5	**ethyl O-(p-nitrophenyl) phenyl phosphonothionate (EPN)** (endnote 3)	**Pesticides/Biocides**	OSPAR 2001
70124-77-5	**flucythrinate**(endnote 3)		OSPAR 2001
465-73-6	**isodrin**(endnote 3)		OSPAR 2001
2227-13-6	**tetrasul**(endnote 3)		OSPAR 2001
512-04-9	**diosgenin**(endnote 3)	*Pharmaceutical*	OSPAR 2001

Endnotes

[1] The substances in this list were identified at the following OSPAR Commission meetings:

OSPAR/MMC 1998: Agreement reference number 1998-16 (Annex 2 to the OSPAR Strategy with regard to Hazardous Substances);

(Note: When identifying the substances or groups of substances, OSPAR/MMC 1998 has not allocated CAS and EINECS registration numbers. Background documents adopted by the OSPAR Commission for these substances or groups of substances may indicate which substances have been addressed so far by OSPAR)

OSPAR 2000: Agreement reference number 2000-10;

OSPAR 2001: Agreement reference number 2001-2;

OSPAR 2002: Agreement reference number 2002-18;

OSPAR 2003: Agreement reference number 2003-19;

OSPAR 2004: OSPAR 04/23/01, §7.3. Agreement number 2004-12;

OSPAR 2023: OSPAR 23/17/01, §13.39. Update to Agreement number 2004-12.

[2] The identification of these substances and the consequent action required is explained in § 7.6 of the OSPAR 2002 Summary Record. In brief, these substances have rankings in terms of persistency, liability to bioaccumulate and toxicity which are of equal concern as the other substances on this list. However, to the best of OSPAR's knowledge, on the basis of information from industry, OSPAR accepts that this substance is produced and used exclusively as an intermediate in closed systems in the production of other substances, under conditions where the safeguards applying are sufficient to avoid reasonable concerns that discharges, emissions or losses of the substance could reach the marine environment. Therefore, every five years, commencing in 2003, Contracting Parties and, where appropriate, observers representing the chemicals industries should report to OSPAR:

a. whether they have found any evidence that these chemicals are being produced, used or discharged without being subjected to safeguards to avoid reasonable concerns that discharges, emissions or losses of the substances could reach the marine environment, and, if so, what that evidence is, and what action (if any) has been taken;

b. whether there have been any cases where applications have been made for approvals involving these chemicals, and, if so, what decision was taken.

[3] The identification of these substances and the consequent action required is explained in § 4.13 of the OSPAR 2001 Summary Record. In brief, these substances have rankings in terms of persistency, liability to bioaccumulate and toxicity which are of equal concern as the other substances on this list. However, to the best of OSPAR's knowledge, there is no current production or use in the OSPAR states. Therefore, commencing in 2003 and every five years thereafter, or earlier, if information becomes available, Contracting Parties and, where appropriate, observers representing the chemicals industries should report to OSPAR:

a. whether they have found any evidence that these chemicals are being produced, used or discharged, and, if so, what that evidence is, and what action (if any) has been taken;

b. whether there have been any cases where applications have been made for approvals involving these chemicals, and, if so, what decision was taken.

[4] Polychlorinated naphthalenes should be treated as a group of substances (OSPAR 02/21/1, § 7.7).

[5] PFOS is the highly persistent and toxic breakdown product of a number of perfluorooctanyl sulphonyl compounds. Several PFOS precursors have been selected on the OSPAR List of Substances of Possible Concern. The background document will identify these precursors and, if necessary, appropriate control measures will be proposed. CAS and EINECS numbers refer only to the acid form of PFOS.

[6] The following substances belonging to the group of polyaromatic hydrocarbons have been deselected from the OSPAR List of Substances of Possible Concern on the grounds that they do not meet the cut-off values for persistence in the Selection Criteria used in the Initial Selection Procedure adopted by OSPAR 2001 (*Reference Number: 2001-1*) and are therefore not considered to be a priority for action by OSPAR: naphthalene, 2-methyl- (CAS No. 91576); 1-phenanthrenecarboxylic acid, 1,2,3,4,4a,4b,5,6,10,10a-decahydro-1,4a-dimethyl-7-(1-methylethyl)-, methyl ester, [1R-(1.alpha.,4a.beta.,4b.alpha.,10a.alpha.)]- (CAS No. 127253); 1-phenanthrenemethanol, 1,2,3,4,4a,4b,5,6,7,9,10,10a-dodecahydro-1,4a-dimethyl-7-(1-methylethyl)- (CAS No. 127366); 7H-dibenzo[c,g]carbazole (CAS No. 194592); 13H-dibenzo[a,i]carbazole (CAS No. 239645); 1H-3a,7-

methanoazulene, 2,3,4,7,8,8a-hexahydro-3,6,8,8-tetramethyl-, [3R-(3alpha,3abeta,7beta,8aalpha)]- (CAS No. 469614); 1-phenanthrenemethanol, 1,2,3,4,4a,4b,5,6,10,10a-decahydro-1,4a-dimethyl-7-(1-methylethyl)-, [1R-(1.alpha.,4a.beta.,4b.alpha.,10a.alpha.)]- (CAS No. 666842); cedrene- (CAS No. 11028425); 1-phenanthrenemethanol, tetradecahydro-1,4a-dimethyl-7-(1-methylethyl)- (CAS No. 13393936); 1-phenanthrenecarboxylic acid, tetradecahydro-1,4a-dimethyl-7-(1-methylethyl)-, methyl ester, [1R-(1alpha,4abeta,4balpha (CAS No. 19941287).

7 The following substance belonging to the group of organic tin compounds has been deselected from the OSPAR List of Substances of Possible Concern on the grounds that it does not meet the cut-off value for persistence in the Selection Criteria used in the Initial Selection Procedure adopted by OSPAR 2001 (*Reference Number: 2001-1*) and is therefore not considered to be a priority for action by OSPAR: stannane, tributyl(1-oxododecyl)oxy- (CAS No. 3090366).

8 The following substance belonging to the group of polychlorinated biphenyls has been deselected from the OSPAR List of Substances of Possible Concern on the grounds that it does not meet the cut-off value for persistence in the Selection Criteria used in the Initial Selection Procedure adopted by OSPAR 2001 (*Reference Number: 2001-1*) and is therefore not considered to be a priority for action by OSPAR: 1,1'-biphenyl, 4,4'-dichloro- (CAS No. 2050682).

9 OSPAR 2005 agreed to remove 4-*tert*-butyltoluene (CAS no 98-51-1), hexachlorocyclopentadiene (HCCP) (CAS No 77-47-4) and triphenylphosphine (CAS No 603-35-0) from the list since they are not PBT substances (see OSPAR 2005 Summary Record, OSPAR 05/21/1 paragraph 7.5).

10 OSPAR 2006 agreed to deselect the following substances belonging to the group of certain phthalates: "DIDP (1,2-Benzenedicarboxylic acid,di-C9-11-branched alkyl esters, C10-rich (CAS N° 68515-49-1)), DIDP (di-“isodecyl”phthalate (CAS N° 26761-40-0)), DINP (1,2-Benzenedicarboxylic acid, di-C8-10-branched alkyl esters, C9-rich (CAS N° 68515-48-0)) and DINP (di-“isononyl” phthalate (CAS N° 28553-12-0)). They are not PBT substances for the reasons set out in the Agreement 2004-13 available on the OSPAR website (see OSPAR 2006 Summary Record, OSPAR 06/23/1 paragraph 8.3).

11 OSPAR 2007 agreed to deselect hexamethyldisiloxane (HMDS) (CAS No 107-46-0) from the List of Chemicals for Priority action since it is not a PBT substance (see OSPAR 2007 Summary Record, OSPAR 07/24/1 paragraph 8.3).

The reasons for deselection are set out in the Agreement 2004-13 available on the OSPAR website.

12 OSPAR 2023 agreed to add per- and polyfluoroalkyl substances (PFAS) to the List of Chemicals for Priority Action and to move the List of Substances of Possible Concern (LSPC – Agreement 2002) to an Annex of the LCPA (OSPAR 23/17/01, §13.39).

Annex 1

OSPAR List of Substances of Possible Concern

(Previous reference number: 2002-17) [4] [5]

OSPAR List of Substances of Possible Concern can be accessed here:
https://www.ospar.org/work-areas/hasec/hazardous-substances/possible-concern

1. With a view to promoting transparency and the submission to OSPAR of further information on substances of possible concern, OSPAR 2002 agreed to publish on the OSPAR web site:

   a. the OSPAR List of Substances of Possible Concern;

   b. underlying fact sheets for individual substances on the list;

   c. a glossary to explain the content and the layout of the fact sheets;

   d. the text accompanying the publication of the List of Substances of Possible Concern at Annex 1A.

2. OSPAR 2002 agreed that the OSPAR List of Substances of Possible Concern replaced the OSPAR 1998 List of Candidate Substances (found at Annex 3 of the previous OSPAR Strategy with regard to Hazardous Substances).

3. OSPAR 2002 furthermore agreed to mandate the Hazardous Substances Committee (now the Hazardous Substances and Eutrophication Committee) to take decisions on the inclusion of a substance in, or the deletion of a substance from the OSPAR List of Substances of Possible Concern. If unanimous agreement on such a decision cannot be reached, the proposal for a decision (including the necessary background documentation) should be forwarded to the Commission for resolution.

4. OSPAR 2023 agreed to move the List of Substances of Possible Concern (LSPC) to an annex of the OSPAR List of Chemicals for Priority Action (LCPA) – Agreement 2004-12.

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[4] The List of Substances of Possible Concern appears on the OSPAR website as a separate page under the menu "Hazardous Substances". It is supplemented by Agreement 2004-13 which includes a list of substances removed from the OSPAR List of Substances of Possible Concern. ***Secretariat note****: The list and the fact sheets are updated regularly as new information becomes available. The function of the list is explained in the Annex and, as a part of the DYNAMEC mechanism, in the OSPAR publication on the Dynamic Selection and Prioritisation Mechanism for Hazardous Substances, which is also available for downloading on the OSPAR web site (under "publications, publication number 2002/146").*

[5] As updated following OSPAR 2005 and HSC(1) 2006 and in 2007, 2008.

Annex 1A

Text accompanying the "OSPAR List of Substances of Possible Concern" as published on the OSPAR Web Site

Introduction

1. This web page is intended to inform visitors to the OSPAR web site about the OSPAR List of Substances of Possible Concern, and its role in OSPAR's efforts to tackle hazardous substances in the aquatic environment. The "question and answer" format is intended to give readers a quick overview of the list, the criteria used to develop it, and its robustness and status. A contact procedure is given for readers who could provide data and information to improve the list.

What is the status of the List of Substances of Possible Concern?

2. The OSPAR List of Substances of Possible Concern is a dynamic working list and will be regularly revised, as new information becomes available. This may lead to exclusion of substances present on the current version of the OSPAR List of Substances of Possible Concern and to inclusion of other substances if data on persistence, toxicity and liability to bioaccumulate (or evidence that they give rise to an equivalent level of concern) show that they should be added. This version of the OSPAR List of Substances of Possible Concern was last revised on 16 August 2006.

Why has the List of Substances of Possible Concern been published?

3. The OSPAR Commission is publishing this List of Substances of Possible Concern in order to enable the transparency of its decisions on which substances to classify as chemicals for priority action, and to provide an opportunity for any errors or omissions in the data on which those decisions were based to be put right. Our goal is to keep this information up-to-date and accurate. If errors or omissions are brought to our attention, they will be corrected.

Why do some substances appear on both the List of Chemicals for Priority Action and the List of Substances of Possible Concern?

4. Section A includes individual substances belonging to or related to prioritised substances or groups, such as brominated flame retardants, PAHs, PCBs, nonylphenols and perfluorinated substances. While the group of substances has been prioritised by OSPAR, not all individual substances have been evaluated for their intrinsic properties and risk for the marine environment in the Background Documents. They are therefore reflected on the List of Substances of Possible Concern**.**

What is OSPAR doing to stop pollution by hazardous substances?

5. OSPAR's main objective for hazardous substances is to prevent pollution by hazardous substances, by eliminating their emissions, discharges and losses, to achieve levels that do not give rise to adverse effects on human health or the marine environment with the ultimate aim of achieving and maintaining concentrations in the marine environment at near background values for naturally occurring hazardous substances and close to zero for human made hazardous substances (OSPAR Strategy for the protection of the marine environment of the North-East Atlantic (Agreement 2021-01).

How are relevant chemicals being identified and targeted?

6. In order to tackle the hazardous substances which are of possible concern to the marine environment, and to prioritise the substances of highest concern for immediate action, OSPAR has developed a selection and prioritisation mechanism. This is described in the publication on the Dynamic Selection and Prioritisation Mechanism for Hazardous Substances (**DYNAMEC**) as published on the OSPAR web site.

How was the initial selection and prioritisation of these chemicals carried out, and how does the List of Substances of Possible Concern fit into this process?

7. The selection and prioritisation mechanism consisted initially of 3 basic steps:

step 1: an initial selection step which by a worst case screening procedure identifies certain hazardous substances on the basis of their intrinsic hazardous properties of persistence, liability to bioaccumulate and toxicity (P, B and T). **Definitions of P, B and T**. These have been placed on the "List of Substances of Possible Concern" because they could adversely affect marine ecosystems;

step 2: a step which ranks these substances of possible concern according to their actual occurrence and effects in the marine environment;

step 3: a step which selects those substances from the ranked list judged to require priority action by OSPAR. **Current OSPAR List of Chemicals for Priority Action.**

Now that OSPAR has finalised the initial selection and prioritisation of substances, and taking account of progress within the European Community, what will OSPAR focus on in the future?

8. OSPAR 2004 agreed that the focus of the further processes on the selection of substances is:

1. to consider new information on substances already on the List of Substances of Possible Concern;
2. to consider information on new substances not addressed under relevant EC initiatives and decide whether they should be added to the List of Substances of Possible Concern;
3. to consider information on substances proposed for addition to the List of Substances of Possible Concern via the Safety net procedure.

OSPAR will not, for the time being, take any new initiatives for prioritisation and ranking of substances. **Agreement for Further Work in relation to the DYNAMEC Mechanism** (Reference number: 2005-10).

Why has OSPAR grouped the substances in section A - D and how has this been done?

9. OSPAR 2004 agreed to review the selection and prioritisation work taking place under the EC initiatives to identify any remaining significant gaps regarding the protection of the marine environment. OSPAR should then conclude whether to take up any such issues with the EC, or to fill any gap by further OSPAR work. To assist this review, OSPAR 2006 agreed further work on the substances of possible concern (**Agreement 2006-9**) to narrow down the number of substances for efficient review by OSPAR. This consisted of a simple screening process in 2006 - 2009 of existing reliable evidence from easily accessible sources to identify substances for:

Section A - which warrant further work by OSPAR because they do not meet the criteria for Sections B - D and substances for which, for the time being, information is insufficient to group them in Sections B - D

Section B - which are of concern for OSPAR but which are adequately addressed by EC initiatives or other international forums

Section C - which are not produced and/or used in the OSPAR catchment or are used in sufficiently contained systems making a threat to the marine environment unlikely

Section D - which appear not to be "hazardous substances" in the meaning of the Hazardous Substances Strategy but where the evidence is not conclusive

All substances listed in Sections A - D remain of possible concern and OSPAR can decide any time to take actions if considered necessary, especially if new information becomes available. The screening process and the information sources are summarised in the **Screening Documentation**. Extracts of the screening database can be obtained upon request from the Secretariat. OSPAR is continuing joint efforts to collect targeted information on substances in Section A to further clarify the concern of the substances and to direct any

further actions which could be followed-up within OSPAR or brought to the attention of the most suitable international frameworks. The section status of the substances on the List of Substances of Possible Concern is regularly updated.

Are persistence, liability to bioaccumulate and toxicity the only criteria for selecting substances?

10. A number of substances which do not meet the full P, B and T criteria have already been added to the List of Substances of Possible Concern because it has been recognised that they give rise to a similar level of concern (for example, endocrine disruptors, or shown to be widely spread in the marine environment by monitoring). The procedures with which OSPAR may add further substances to the list on the basis of equivalent concern are presented in the **Guidance on How to Apply the Safety Net Procedure for the Inclusion of Substances in the List of Substances of Possible Concern** (Reference number: 2002-10).

How does the List of Chemicals for Priority Action relate to the List of Substances of Possible Concern?

11. The List of Substances of Possible Concern consists of the substances which have been selected on the basis of their intrinsic hazardous properties (step 1). The substances on the List of Chemicals for Priority Action are those which the OSPAR Commission has to date determined require priority action, based primarily on recommendations from DYNAMEC's ranking process and expert judgement as to which substances represent the highest concern due to the amount produced, the degree of hazardous properties and/or the actual occurrence in the marine environment (steps 2 and 3). As the work of OSPAR progresses, it is envisaged that the List of Chemicals for Priority Action will be further updated with substances from the List of Possible Concern in order that the objectives of the Strategy can be progressively met.

Where does the information about hazardous properties come from, and is it reliable?

12. The substances on the OSPAR List of Substances of Possible Concern have been identified by a worst case screening of a number of databases with experimental data on P, B and T. However, when experimental data are not available, substances have been identified by employing different models (QSARs: Quantitative Structure Activity Relationships) which estimate these values on the basis of chemical structure. The screening is not exhaustive as not all possible data sources have been available or because of limitations in the models employed. Furthermore, some substances may falsely have been selected due to data errors or outliers.

13. The P, B and T criteria used for the selection of the Substances of Possible Concern are described in the Agreement on **Cut-Off Values for the Selection Criteria of the OSPAR Dynamic Selection and Prioritisation Mechanism for Hazardous Substances** (Reference number 2005-09).

Is the underlying data used to select substances onto the List of Substances of Possible Concern available?

14. The underlying data used for the selection of the Substances of Possible Concern can be found on the relevant fact sheets.

Have the data on the List of Substances of Possible Concern been validated?

15. Expert judgement has been undertaken for only a part of the substances. Data for most of the substances have only been subjected to a preliminary scrutiny to ensure that they are sufficiently credible to indicate a possible concern. Therefore, there is still considerable room for improvement and confirmation of the data, that were used in a worst case screening procedure, especially if appropriate experimental values are available which may replace QSAR estimates. The extent to which the data for a certain substance has been scrutinised is indicated in the box "remarks" of the fact sheet for that substance.

What steps is OSPAR taking to improve the data?

16. OSPAR is keen to update the list and the fact sheets with more good quality data, and has been working with industry trade associations and OSPAR Contracting Parties to obtain such information. The more the list

and the fact sheets become updated and validated with good quality data, the better the list will act as a tool to flag up those substances which are likely to be of concern to the marine environment.

What type of data would be of interest to OSPAR?

17. OSPAR is keen to get more good quality data with regard to the intrinsic properties (P,B and T) of these substances, or other substances with similar properties. However, OSPAR also does need information with regard to the production and use of these substances, and information on their occurrence in the environment.

What happens if new data comes forward on a substance which means that its selection is no longer justified?

18. Following expert review of additional data that has come forward, OSPAR has removed several substances from the list since it was first published. Information on these substances and the reasons for their removal can be found on the **List of Substances Removed from the OSPAR List of Substances of Possible Concern** (Reference number 2004-13).

19. The fact sheets for the deselected substances have been updated to include information about the reasons for deselection. Following this the fact sheets have been removed from the website and will not be updated any further. They are stored in the database of the OSPAR Secretariat and can be made available upon request to the Secretariat.

What can I do if I have information which might contribute to this process?

20. Visitors to this web site who have information which would enable OSPAR to update its List of Substances of Possible Concern are invited to contact the **OSPAR Secretariat** who will advise them further regarding the submission of relevant information. An **empty fact sheet** for the submission of such information and a **glossary** explaining the content of the fact sheet are available for downloading.

Disclaimer

21. The Commission accepts no responsibility or liability whatsoever with regard to the contents of the list or the supporting data sheets. Efforts have been made to ensure that the information given is as accurate as possible, but it is not necessarily comprehensive, complete, accurate or up-to-date.

22. This disclaimer is not intended to limit the liability of the Commission contrary to any obligations imposed by applicable national law nor to exclude liability for matters which may not be excluded under that law.